

Defendant has provided an arbitration agreement it contends is electronically signed by Plaintiff. The arbitration agreement is between Plaintiff and Defendant. It applies to all disputes between Plaintiff and Defendants that relate to the provision of care, treatment, and services provided to Plaintiff. (Arbitration Agreement, ¶ 2.1.) The scope of the arbitration agreement would cover Plaintiff's claims. Plaintiff challenges the authenticity of the electronic signature.

Under Civil Code § 1633.9(a), "An electronic record or electronic signature is attributable to a person if it was the act of the person. The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable." "[A] party may establish that the electronic signature was 'the act of the person' by presenting evidence that a unique login and password known only to that person was required to affix the electronic signature, along with evidence detailing the procedures the person had to follow to electronically sign the document and the accompanying security precautions." (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 545.) In *Ruiz*, *supra* 232 Cal.App.4th at 843-846, the court found that a generic assertion alone that the electronic signature belonged to the plaintiff was not sufficient.

All Defendant has is a generic assertion that Plaintiff signed the agreement. It does not walk through how an electronic signature occurs and the protocol put in place to ensure that the Plaintiff signed the agreement. In opposition, they assert that they are not required to do so because Ruben Arroyo's declaration establishes Plaintiff signed the agreement. His declaration does not establish this. Mr. Arroyo states that he explained the agreement to Plaintiff and her attorney-in-fact on 6/8/24. (Declaration of Ruben Arroyo, ¶ 4.) The explanation occurred on 6/8/24 and Plaintiff allegedly signed the agreement on 6/11/24. (Declaration of Jason Varley, Exhibit A.) Mr. Arroyo does not state in his declaration that he witnessed Plaintiff execute the arbitration agreement. He simply asserts that her electronic signature is found on the arbitration agreement. (Declaration of Ruben Arroyo, ¶ 5.) Plaintiff's attorney-in-fact, Graciee Cifuentes Orellana, provides a declaration that states that she did not witness anyone explain an arbitration agreement to Plaintiff (her grandmother). (Declaration of Graciee Cifuentes, ¶ 12.) She states that she never witnessed Plaintiff sign any documents at the facility. (*Id.* at ¶ 14.) She provides that this would be out of the norm for Plaintiff to sign any paperwork because she is Plaintiff's attorney-in-fact and she routinely signed admission paperwork and other documents that required Plaintiff's signature. (*Id.* at ¶ 14.) Due to this, Defendant has failed to establish that Plaintiff electronically signed the agreement.

The motion to compel arbitration is denied.

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CASE #	CASE NAME	HEARING NAME
CVRI2505919	MARSHALL VS AMERICAN CREDIT ACCEPTANCE	MOTION TO COMPEL ARBITRATION BY AMERICAN CREDIT ACCEPTANCE

Tentative Ruling:

This motion is unopposed. Accordingly, the motion to compel arbitration is granted. Moving party to give notice of ruling. Any future dates on calendar in this matter will go off calendar and the matter is stayed pending completion of arbitration.